

HOUSE No. 108

The Commonwealth of Massachusetts

PRESENTED BY:

James C. Arena-DeRosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect Massachusetts pollinators.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>1/15/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>10/14/2025</i>

HOUSE No. 108

By Representative Arena-DeRosa of Holliston, a petition (accompanied by bill, House, No. 108) of James C. Arena-DeRosa relative to the use and protection of pollinators by further regulating the spraying, release, deposit or application of a neonicotinoid on certain agricultural land. Agriculture.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect Massachusetts pollinators.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 132B of the General Laws, as appearing in the 2018
2 Official Edition, is hereby amended by inserting after the definition of “Nematode” the following
3 definition:-

4 “Neonicotinoid,” a pesticide belonging to the neonicotinoid class of chemicals which act
5 selectively on nicotine acetylcholine receptors of organisms and are absorbed into plant tissue
6 and can be present in pollen and nectar, including but not limited to, imidacloprid, acetamiprid,
7 clothianidin, dinotefuran, nithiazine, nitenpyram, thiacloprid, and thiamethoxam and any other
8 pesticide identified as a neonicotinoid by the United States Environmental Protection Agency.

9 SECTION 2. Section 6 of said chapter 132B, as so appearing, is hereby amended by
10 inserting after the second paragraph the following paragraph:-

11 No person shall distribute a neonicotinoid, or any substance containing a neonicotinoid,
12 except a neonicotinoid-treated nursery plant, to any person except a certified commercial
13 applicator, a certified private applicator, or a licensed applicator.

14 SECTION 3. Said chapter 132B, as so appearing, is hereby amended by inserting after
15 section 6K the following section:-

16 Section 6L. (a) Neonicotinoids shall only be sprayed, released, deposited or applied on
17 any property within the commonwealth by a certified commercial applicator, certified private
18 applicator or licensed applicator.

19 (b) Upon entering into an agreement to provide services that include application of
20 neonicotinoids, a certified commercial applicator, certified private applicator, or licensed
21 applicator shall provide to property owners the following: (i) a form authorizing the applicator to
22 apply neonicotinoids; (ii) a copy of any warning statements concerning bees on the label of
23 neonicotinoids being applied; (iii) notice of the harm neonicotinoids cause to waterways, soils,
24 and the flora and fauna that inhabit such environments; and (iv) an acknowledgment signifying
25 that the owner has received and understands this information. This subsection shall not apply to
26 any certified commercial applicator, certified private applicator, or licensed applicator using a
27 neonicotinoid on property that he or she owns.

28 (c) The subsections (a) and (b) shall not apply to the following products: (i) pet care
29 products used to mitigate fleas, mites, ticks, heartworms, or other animals that are harmful to the
30 health of a domesticated animal; (ii) personal care products used to mitigate lice and bedbugs;
31 (iii) indoor pest control products used to mitigate insects indoors, including ant bait and (iv) any

products used by licensed or certified applicators for use in industrial, institutional, structural and health related pest control, as defined in 333 CMR 10.03.7.

SECTION 4. Section 10 of said chapter 132B, as so appearing, is hereby amended by inserting in line 61 after the word “management” the following words:- and the protection of pollinators from adverse effects of pesticide applications.

SECTION 5. Section 14 of said chapter 132B, as so appearing, is hereby amended by inserting after the word “inclusive”, in lines 9 and 10, the following words:- , section 6L.

SECTION 6. The Massachusetts Department of Transportation shall identify opportunities in the commonwealth for the replacement of non-native, cool-season turf grasses around solar energy installations on property owned by the department with native plant communities that include flowers, wildflowers, vegetables, herbs, cover crops and legume species to attract pollinators.